

3 May 2021

Dr Rich Mclean
2 McCubbin Street
Footscray VIC 3011

Dear Dr Mclean

Case numbers 700088 (Media Super)
747026 (AustralianSuper)
767480 (TAL Life)
758027 (Bendigo and Adelaide Bank)
785105 (HCF Life Insurance)

Thank you for your emails dated 3 May 2021, being in reply to my letter dated 29 April 2021.

You have committed to AFCA's confidentiality requirements

In your 3 May 2021 emails you provided the following commitment:

Let me make it clear that I do not have any intention to publish anything to do with AFCA or its employees

I confirm unequivocally and hereby promise that I will not mention any names publicly and respect the processes of confidentiality required by AFCA and its independent resolution process.

I am satisfied these responses comply with my request and trust you will maintain this commitment. Given this, we will continue to progress the above cases through the AFCA process.

However, as outlined in my 29 April 2021 letter, any future threat to publish information about AFCA employees will be taken to mean you have broken your previous commitment and boundaries referenced in our previous letters to you. Accordingly, and without warning to you, we will close our files.

Appointing a representative to handle your complaints

In your 3 May 2021 emails you shared information regarding other matters which you are dealing with and their impact on you personally and the AFCA cases. I appreciate that dealing with a financial complaint can be overwhelming, especially when you are also handling other matters at the same time.

While we are prepared to work with you directly regarding your AFCA cases, you may wish to:

- appoint a representative to deal with your complaints at AFCA, such as a family member or friend
- connect with community-based organisations which offer a wide range of services which are free, confidential and independent (my 2 March 2021 letter provides further details of those services)

Conclusion

We will continue our consideration of your complaints and update you with their progress shortly.

Yours sincerely

A handwritten signature in dark ink, appearing to read 'P Fisher', with a stylized flourish at the end.

Peter Fisher
Senior Manager - Superannuation
Australian Financial Complaints Authority